

- 2) Reason why the list of attributes of good governance so widely differ between agencies.

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- 3) How do rights agencies and donor agencies differ in prescribing characteristics of good governance?

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25.6 GOVERNANCE IN INDIA

Judging governance in any country requires knowing:

- 1) Whether proper institutional structure of governance is in place?
- 2) Whether proper mechanisms and procedures have been adopted?
- 3) Whether proper roles have been assigned to different stakeholders and how well they play their roles? and
- 4) Whether there exists a resilient framework for accommodating dynamics of the time?

First, let us broadly know about the institutional structures and operational mechanisms as they exist in India. Then, we shall indicate, in brief, the state of affairs of governance.

A Constituent Assembly, though through indirect elections, was constituted a little before Independence. Passing through turbulent times of facing partition of the country, and getting hundreds of princely states accessed to India and getting them turn into viable units, the Assembly could prepare a Constitution in three years' time. Members put the final signatures by 26 November 1949 but it was decided to promulgate the Constitution to replace the Government of India Act of 1935 on 26 January 1950 as 26 January 1930 was the day set for Complete Independence in Poorna Sawraj resolution carried out on 31 December 1929 in the Session of the Indian National Congress which was held in Lahore. Since then the day of 26 January was celebrated as Poorna Swaraj Day for next 17 years.

The Constitution adopted parliamentary form of government and provided an elaborate legal framework and institutional structures as well as mechanisms,

and procedures for the three wings of government and three levels of government (local governments were explicitly incorporated in 1993). The Constitution guarantees certain rights to people vis-à-vis the State which is further guided by certain principles for governance of the country. They are called as Fundamental Rights (of people) and Directive Principles (of State Policy) respectively. It is generally accepted that they embody the concept of a Welfare State in India. Besides, there are provisions regarding oversight constitutional bodies like Comptroller and Auditor General of India and Election Commission besides Judiciary which is a wing of government. It may be noted that word Government is invariably used for the Executive Wing of the government – Government of India for the Union Executive and Government of a State for State Executive.

The Fundamental Rights entitle people to certain rights that are enforceable by a court of law, such as the Right to Life, the Right to Freedom of Association, the Right to Freedom of Expression, and the Right to Education (since 2009), Equality before Law and Equal Protection under Law. Besides, a citizen of age 18 and above has a right to vote in elections to Parliament, State Legislatures and Local Governments. And one of age 21 is eligible to contest for membership in a local government, and one of 25 to House of Representatives (Lok Sabha) and Legislative Assemblies (Vidhan Sabha). Elections have also been organised frequently under the supervision of the Election Commission for Parliament and State Legislatures and State Election Commissions for local governments. Compared to several other countries, Indian elections have generally been fair and the process has generally been improving over time. But for this, India – the largest democracy – is also said to be a vibrant democracy. Many young leaders are making history by becoming Mayors of municipal corporation and Sarpanchs of gram panchayats in their 20s.

Further, there exists an independent Judiciary that interprets the Constitution, upholds the Constitutional Rights of Indian citizens, punishes violations of the law of the land and also strikes down laws and policies made by the Executive that run counter to the provisions of the Constitution. The Supreme Court has adopted an innovative device of Public Interest Litigation (PIL) since 1980s to enable any person or civil society group to approach the court seeking legal remedies in cases where public interest is at stake. Higher judiciary has acted even on the basis of post cards/letters from individuals, articles in newspapers and petitions from a wide cross-section of people. The Supreme Court's positive pronouncements in areas of civil liberties, and social, economic, and development rights have alerted people and governments alike.

There are several watchdog institutions, some constitutional and some statutory. To name a few, there are the Comptroller & Auditor General (CAG), the Election Commission, the Central Vigilance Commission (CVC), the Securities and Exchange Board of India (SEBI) and the Reserve Bank of India (RBI), the National Green Tribunal (NGT) to oversee and check malpractices in areas coming under their respective jurisdictions. All States have Lokayuktas and a Lokpal has just been appointed at Union level in

2019. They are empowered to look into cases of corruption against government officials, including CMs and PM. It took fifty years but finally it happened.

There are also in existence National Commissions for Scheduled Castes, Scheduled Tribes, Backward Classes, Women, and Minorities as well as National and State Human Rights Commissions to oversee the wrongs committed against the sections they are empowered to protect for their rights and promote their welfare.

A little-known fact about the legislative wing of the government is the existence and work of Parliamentary Committees and Committees of the Legislative Assemblies, which function almost as 'mini legislature' and are there to scrutinise legislative and executive actions. Actually, they are also a link between people and legislature on the one hand and between legislature and government. In the Parliament, number of committees went on increasing over time. As of now, there are three finance committees of standing nature (Estimates Committee, Public Accounts Committee, and Committee on Public Undertakings); 24 Standing Committee related with Government Departments, 16 Standing Committees for other subjects, and 9 Ad Hoc Committees. A minister is not eligible for election or nominations to all such committees except a few in the ad hoc category which are either as Select Committees or Joint Parliamentary Committees. Select Committees examine, in consultation with the public and experts, legislative Bills brought before Parliament and recommend for the consideration of Parliament but can revise or reject them. For example, the National Identification Authority Bill, 2010 was rejected. Similar mechanisms exist in the Legislatures at the State levels. The system of parliamentary committees is becoming more and more consultative, as various stakeholders, including the state governments, present their cases before these committees. However, at times, some standing committees are not constituted and due diligence is not applied in the scrutiny of the bills. This is what happened in 17th Lok Sabha.

But governance goes beyond government. As is well-known, media is often considered as the fourth estate or fourth power/pillar of democracy in modern times as they can wield considerable power to influence the role of the three wings of the government. Media in India is quite free and has been quite vigilant about public affairs. Sting operations have been a recent addition in its armoury to unearth corrupt practices. Media has exposed several unethical practices in public life; for example, corruption in the procurement of weapons for the armed forces, influencing and winning over of a witness for one of the parties to litigation, and the sale of S-Band spectrum to a private company by Antrix Corporation of the Department of Space, 2G scam, coal auction, commonwealth games, etc. The Press Council of India guards the freedom of the press. The Right to Information Act, 2005 has strengthened the media also, besides individuals. Many Government Organisations felt compelled to put up Citizens' Charters to ensure transparency in their dealings. Then, there exists a modicum of think tanks in the country.

Further, the role of non-governmental organisations (NGOs) cannot be belittled. They promote the participation of civil society in the governing

process by (i) bringing forth the views of the public on various issues (ii) creating awareness about issues of importance, and (iii) fighting for the rights of the people or of specific sections of society. For instance, enactment of Lokpal and Lokayuktas Act in 2013 owes entirely to the agitation by NGOs.

Private (corporate) sector also has its associations, chambers, federations at sectoral level as well as at regional, state and national levels. The same is true of other interests like non-corporate business which may organise at local level and may have federations. Labour, farmers, wholesalers, retailers and street vendors do organise as do residents through associations, forums, etc. India is full of them. They communicate among themselves as well as with the governments and agencies at various level. There are religious organisations and trusts which are guided by the law of the land. However, several oversights regulatory authorities had to be created to check the abuse of dominance. Competition Commission of India, SEBI, IRDAI, TRAI, ERCs, etc. are examples to be studied.

In recent decades, quite a few developments have taken place in technology, the most important being in the area of information and communication. With development in ICT, e-Governance has been introduced with National e-Governance Programme since 2006. Over the years, various government operations and services have been brought within its fold, especially at the cutting edge of administration to cut down delays in the delivery of services and reduce the scope for mal-practices and corruption. Most notable example of e-Governance is existence of the universalised Unique Identification Number to citizens through Aadhar card since 2009.

Thus most of the institutional structures considered necessary for ensuring good governance exist in India and as, noted above, with some good governance outcomes. Yet, the present governance scenario in India is far from satisfactory, as indicated below.

A majority of the people – the poor and the illiterate – is unaware of its entitlements. Rights violations do occur; the socially disadvantaged sections of society are at times maltreated and discriminated, socially segregated, and even physically assaulted and the police is often found to look the other way. Women, even the educated ones, fare no better. At times, it is felt that atrocities against women are rising.

Notwithstanding the efforts of the Election Commission to rid the election process of the influence of money and muscle power, elections continue to be driven by these factors, thereby preventing a real competition for political power. There exists another worrying trend, which is the loss of Parliament's and Legislatures' time by disruption of proceedings – resulting into disruption of passage of bills. While increase in representation of women in legislatures has improved, the presence of industrialists, businessmen, traders and builders, and those from allied groups is rising; while the former's share is 15 per cent that of the latter is reaching 25 per cent. Most people consider the former as welcome sign and the latter as bemusing. Only happy development people see in this regard that women, and at that young women,

are actively participating in local governments, thanks to positive approach of some States.

One notice rampant corruption at all levels. Take any scheme, for example, MGNREGA, there are issues at implementation level. People often say that Indians are good at planning and bad in implementation. A plan which is cannot be implemented, is not a plan at all!

For ensuring better behaviour from private corporate sector, Companies Act of 1956 has been replaced by Companies Act of 2013 whereby corporate governance has improved in the composition of board of directors, appointment of company secretary, corporate social responsibility. But it is found that rules are followed in letter but not in spirit.

Check Your Progress 5

- 1) State the institutional structure as provided in the Constitution of India towards good governance.

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- 2) Who are the players that should be kept in mind while evaluating governance of the country?

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- 3) State the major oversight/watchdog institutions with their roles.

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- 4) Identify some of the major pitfalls in the governance of the country.

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5) Explain the role of civil society in India.

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25.7 LET US SUM UP

We started with introduction about the idea of good governance which made inroads across the board and the role in it played by the international/multilateral aid and cooperation agencies for development, starting with the World Bank. Naturally, the unit first considered what governance means and how it can be distinguished from government and highlighted the importance of agencies within and outside government and various other players in societal affairs. But then, word governance found so great acceptance that it almost replaced administration and management from many contexts and with some qualifying adjective, it found place across sectors, modes, fields, areas, and goals.

Though mal-governance was found to be major issue in non-success of aided projects, good governance attracted many definitions and descriptions from varied institutions. National governments adopted good governance but adapted somewhat different definitions – befitting their areas of interest. Scholars joined the debate and analysed contents of various conceptions in terms of implications. Some were found closer to administrative systems and others towards political systems. There is some kind of evolution over time and tilting towards democratic governance. Some found the developments quite bewildering. There were also suggestions for democratic governance, public governance, humane governance, SMART governance, and e-governance.

Several agencies put forward certain criteria to judge the quality of governance. There is some convergence but a lot of divergence. By and large, people's participation in decision-making, transparency in administrative processes, accountability of government officials, and responsiveness/responsibility of government departments/agencies were given as yardsticks of good governance. Rule of law and combating corruption also find favour. But then, depending upon an agency's focus, other criteria are also mentioned. For example, those interested in human rights may suggest inclusion, fairness and equity.

Finally, we discussed governance in India – institutional structure, mechanisms, and instruments as enshrined in the Constitution, other agencies and their roles thrown up by statutes, role of media and NGOs, contribution of influence groups and pressure groups, etc. However, everything is not hunky dory with governance in India and a few pitfalls and weaknesses are also pointed out.

25.8 TERM-END EXERCISES

- 1) Go through website <https://info.worldbank.org/governance/wgi/> of Worldwide Governance Indicators Project and study the aggregate indicators for India. How has India fared in different dimensions?
- 2) Read Chapter 8 of Human Development Report of the year 2011 published by the UNDP and assess how the Principles of Governance enunciated therein are different from those in the Worldwide Governance Indicators.
- 3) Visit the website of the OECD and read the section on OECD work on public governance. Pick up a topic of your interest and develop a narrative.
- 4) Read the Eleventh Report of the Second Administrative Reforms Commission (of India). Evolve a brief story of e-Governance initiatives in India.
- 5) Visit the website of one of the Commissions whether for SC, ST, or BC, as mandated by Art 338, 338A, and 338B respectively of the Constitution of India. Discuss the chosen Commission's role in protection, welfare, and socio-economic development of relevant section of Indian society

25.9 KEY WORDS

- UNESCAP** : United Nations Economic and Social Commission for Asia and the Pacific (UNESCAP) is the regional development arm of the United Nations in Asia and the Pacific, to promote cooperation among member States for creating a more interconnected region working to achieve inclusive and sustainable economic and social development.
- UNDP** : The United Nations Development Programme (UNDP) is the global development network of the United Nations, to promote technical and investment cooperation among nations.
- UNHCR** : The United Nations High Commissioner for Refugees (UNHCR) is a UN agency mandated to aid and protect refugees, forcibly displaced communities, and stateless people, and to assist in their voluntary repatriation, local integration or resettlement to a third country.
- IDA** : The International Development Association (IDA) is the part of the World Bank that helps the world's poorest countries. It aims to reduce poverty by providing zero to low-interest loans (called "credits") and grants for programs that boost economic growth, reduce inequalities, and improve people's living conditions.

- ADB** : The Asian Development Bank (ADB) is a regional development bank aimed at promoting social and economic development in Asia.
- AfDB** : The African Development Bank Group (AfDB) is a multilateral development finance institution catering to African governments and private companies investing in the regional member countries (RMC).

25.10 REFERENCES

It would be worthwhile to visit websites of the World Bank, IMF, OECD, and United Nations' agencies – particularly UNDP, UNESCAP, and UNESCO, to appreciate the evolution of the concept as well as differentiation between conceptualisations by various agencies. Reports of Second Administration Reforms Commission, particularly 11th one, would also be very useful. Reports are available on the website of Department of Administrative Reforms and Public Grievances, Government of India. Read some scholarly articles which raise questions on the idea as promoted by international aid agencies. Some of the books and articles which would be very helpful, are:

- 1) Grindle, Merilee S. (2017). Good Governance, R.I.P.: A Critique and an Alternative, *Governance*, vol. 30, issue 01 (January), pp. 17-22.
- 2) International Monetary Fund (2017). *The Role of the Fund in Governance Issues: Review of the Guidance Note – Preliminary Considerations (Background Notes)*
- 3) Kaufmann, Daniel; Kraay, Aart & Mastruzzi, Massimo (2010). *The World Governance Indicators: Methodological and Analytical Issues – World Bank Policy Research Working Paper No. 5430*.
- 4) Kuldeep Mathur (2008). *From Government to Governance*, National Book Trust, New Delhi.
- 5) United Nations (2009). What is Good Governance? *United Nations Economic and Social Commission for Asia and the Pacific*.
- 6) UNESCAP (2011), What is Good Governance?, www.unescap.org.
- 7) World Bank (1991). *Managing Development – The Governance Dimension*, The World Bank, Washington DC.
- 8) World Bank (1994). *Governance; The World Bank's Experience*, The World Bank, Washington DC.
- 9) World Bank (2002). *World Development Report, 2002 "Building Institutions for Markets"*, The World Bank, Washington, DC.
- 10) World Bank (2007). *A Decade of Measuring the Quality of Governance*, The World Bank, Washington, DC.

25.11 ANSWERS OR HINTS TO CHECK YOUR PROGRESS EXERCISES

Check Your Progress 1

- 1) Government is one, though an essential, part of a State and a mechanism of governing it whereas governance is the total way all societal affairs, particularly the public affairs, are conducted.
- 2) Depending upon their mandates international agencies orient their way of operationising the idea of governance. For example, Human Rights agencies will focus more on rule of law whereas Financial agencies will focus more on corruption and public sector performance.
- 3) Meta-governance is the framework of governance. For example, Constitution of a country is expected to provide the background for making the laws.

Check Your Progress 2

- 1) The World Bank started the campaign as it discovered that the conditionalities attached with development project aids in 1980s did not bear the fruits and the major reason was bad governance.
- 2) As the idea was lurking for long that there are substantial issues in governance in most of the countries but agencies other than World Bank/IMF found World Bank/IMF too much focused on public sector management or management of public resources. So was the case with scholars also. They added their own angles generally from the perspective of their disciplines.
- 3) Administration is traditionally more interested in seeing whether the procedure/ processes in a particular case have followed the rule book. As that process may be a link in a long chain, it appears sensible also. However, taste of pudding is in eating. So, it was suggested that it has to be seen in total perspective. While the former is input legitimacy, the latter is output or outcome legitimacy.

Check Your Progress 3

- 1) Humane governance is good governance seeking to secure human development. Its components are political governance, economic governance, and civic governance.
- 2) SMART in SMART governance stands for simple, moral, accountable, responsive and transparent. Acronym SMART sounds similar to smart which was already in use in the context of urban governance or cities which attempted to provide modern facilities and amenities to its populace.
- 3) E-governance is an attempt to make good use of ICT tools in governance and it can help a great deal to improve the pace of good governance but it is not a substitute for SMART governance.

Check Your Progress 4

- 1) People's participation in decision making, accountability of agencies to the people they serve, and responsiveness of agencies in solving the people's issues.
- 2) Mandates of the agencies, the time they are written, and the people who articulate them.
- 3) Rights agencies, like United Nations High Commissioner for Human Rights or Amnesty International, will seek to protect and promote human rights whereas the World Bank or International Monetary Fund will like to see that aid projects are successfully conducted.

Check Your Progress 5

- 1) Better you have look at the Constitution of India. There are three levels of government. There are bodies/agencies prescribed by the Constitution and there are agencies created by statutes or organised for administrative convenience.
- 2) Government departments, government wings and agencies, media, NGOs, people's forums, section unions, trade unions, advocacy groups, business chambers and federations, and think tanks.
- 3) Judiciary, particularly higher judiciary, is a watchdog for any excesses committed by governments and their agencies. Comptroller and Auditor General is another watchdog in the sphere of financial matters. Election Commission of India responsibly conducts/supervises the elections for legislatures, and offices of President and Vice President. State Election Commissions likewise conduct elections for local government in their respective States. There are others like National Green Tribunal for environmental issues and Lokpal/Lokayuktas for corruption in offices and by officers and officials – including PM and CM.
- 4) It is an exercise for you!
- 5) Civil society comes in various forms like voluntary associations, user's groups, rights groups, sectional associations. Some cooperate and facilitate government in governance, others point out pitfalls and seek redressal. Some resolve societal issues on their own.